

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1810

By: Weaver of the Senate

and

West (Tammy) of the House

6
7
8
9 An Act relating to human trafficking; amending 21
10 O.S. 2021, Section 748, as last amended by Section
11 20, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,
12 Section 748), which relates to human trafficking;
13 requiring admissibility of certain expert testimony;
14 amending 74 O.S. 2021, Sections 18p-1, as amended by
15 Section 2, Chapter 453, O.S.L. 2024, 18p-3, 18p-4,
16 18p-5, 18p-6, 18p-7, and 18p-8 (74 O.S. Supp. 2025,
17 Section 18p-1), which relate to domestic violence and
18 sexual assault programs and services; modifying
19 definition; authorizing Attorney General to enter
20 into agreements for services for victims of human
21 trafficking; providing for confidentiality of certain
22 information; authorizing human trafficking shelters
23 to provide certain services; expanding certain
24 telephone communication service to victims of human
trafficking; requiring Attorney General to promulgate
rules for certification of human trafficking programs
and services; requiring certification of certain
shelters and programs by the Attorney General;
authorizing Attorney General or district attorney to
bring certain actions; authorizing Attorney General
to collect certain information; updating statutory
language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. AMENDATORY 21 O.S. 2021, Section 748, as last
2 amended by Section 20, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,
3 Section 748), is amended to read as follows:

4 Section 748. A. As used in ~~Sections 748~~ this section and
5 Section 748.2 of this title:

6 1. "Coercion" means compelling, forcing, or intimidating a
7 person to act by:

8 a. threats of harm or physical restraint against any
9 person,

10 b. any act, scheme, plan, or pattern intended to cause a
11 person to believe that performing, or failing to
12 perform, an act would result in serious physical,
13 financial, or emotional harm or distress to or
14 physical restraint against any person,

15 c. the abuse or threatened abuse of the law or legal
16 process,

17 d. knowingly destroying, concealing, removing,
18 confiscating, or possessing any actual or purported
19 passport, labor or immigration document, or other
20 government identification document, including, but not
21 limited to, a driver license or birth certificate, of
22 another person,
23
24

- e. facilitating or controlling a person's access to any addictive or controlled substance other than for legal medical purposes,
- f. blackmail,
- g. demanding or claiming money, goods, or any other thing of value from or on behalf of a prostituted person where such demand or claim arises from or is directly related to the act of prostitution,
- h. determining, dictating, or setting the times at which another person will be available to engage in an act of prostitution with a third party,
- i. determining, dictating, or setting the places at which another person will be available for solicitation of, or to engage in, an act of prostitution with a third party, or
- j. determining, dictating, or setting the places at which another person will reside for purposes of making such person available to engage in an act of prostitution with a third party;

2. "Commercial sex" means any form of commercial sexual activity such as sexually explicit performances, prostitution, participation in the production of pornography, performance in a strip club, or exotic dancing or display;

1 3. "Debt bondage" means the status or condition of a debtor
2 arising from a pledge by the debtor of his or her personal services
3 or of those of a person under his or her control as a security for
4 debt if the value of those services as reasonably assessed is not
5 applied toward the liquidation of the debt or the length and nature
6 of those services are not respectively limited and defined;

7 4. "Human trafficking" means modern-day slavery that includes,
8 but is not limited to, extreme exploitation and the denial of
9 freedom or liberty of an individual for purposes of deriving benefit
10 from that individual's commercial sex act or labor;

11 5. "Human trafficking for labor" means:

12 a. recruiting, enticing, harboring, maintaining,
13 transporting, providing, or obtaining, by any means,
14 another person through deception, force, fraud,
15 threat, or coercion or for purposes of engaging the
16 person in labor, or

17 b. benefiting, financially or by receiving anything of
18 value, from participation in a venture that has
19 engaged in an act of trafficking for labor;

20 6. "Human trafficking for commercial sex" means:

21 a. recruiting, enticing, harboring, maintaining,
22 transporting, providing, or obtaining, by any means,
23 another person through deception, force, fraud,
24

1 threat, or coercion for purposes of engaging the
2 person in a commercial sex act,

3 b. recruiting, enticing, harboring, maintaining,
4 transporting, providing, purchasing, or obtaining, by
5 any means, a minor for purposes of engaging the minor
6 in a commercial sex act, or

7 c. benefiting, financially or by receiving anything of
8 value, from participating in a venture that has
9 engaged in an act of trafficking for commercial sex;

10 7. "Legal process" means the criminal law, the civil law, or
11 the regulatory system of the federal government, any state,
12 territory, district, commonwealth, or trust territory therein, and
13 any foreign government or subdivision thereof and includes legal
14 civil actions, criminal actions, and regulatory petitions or
15 applications;

16 8. "Minor" means an individual under eighteen (18) years of
17 age; and

18 9. "Victim" means a person against whom a violation of any
19 provision of this section has been committed.

20 B. It shall be unlawful to knowingly engage in human
21 trafficking.

22 C. Any person violating the provisions of this section shall,
23 upon conviction, be guilty of a Class A2 felony offense punishable
24 by a fine not more than One Hundred Thousand Dollars (\$100,000.00),

1 by imprisonment in the custody of the Department of Corrections for
2 a term ~~of~~ not less than five (5) years or for life, ~~or by a fine of~~
3 ~~not more than One Hundred Thousand Dollars (\$100,000.00),~~ or by both
4 such fine and imprisonment. Any person violating the provisions of
5 this section where the victim of the offense is under eighteen (18)
6 years of age at the time of the offense shall, upon conviction, be
7 guilty of a Class A2 felony offense punishable by a fine not more
8 than Two Hundred Fifty Thousand Dollars (\$250,000.00), by
9 imprisonment in the custody of the Department of Corrections for a
10 term ~~of~~ not less than fifteen (15) years or for life, ~~or by a fine~~
11 ~~of not more than Two Hundred Fifty Thousand Dollars (\$250,000.00),~~
12 or by both such fine and imprisonment. The court shall also order
13 the defendant to pay restitution to the victim as provided in
14 Section 991f of Title 22 of the Oklahoma Statutes. If the person is
15 convicted of human trafficking, the person shall serve eighty-five
16 percent (85%) of the sentence before being eligible for parole
17 consideration or any earned credits. The terms of imprisonment
18 specified in this subsection shall not be subject to statutory
19 provisions for suspension, deferral, or probation, or state
20 correctional institution earned credits accruing from and after
21 November 1, 1989, except for the achievement earned credits
22 authorized by subsection H of Section 138 of Title 57 of the
23 Oklahoma Statutes. To qualify for such achievement earned credits,
24 such inmates must also be in compliance with the standards for Class

1 level 2 behavior, as defined in subsection D of Section 138 of Title
2 57 of the Oklahoma Statutes.

3 D. It is an affirmative defense to prosecution for a criminal,
4 youthful offender, or delinquent offense that, during the time of
5 the alleged commission of the offense, the defendant or alleged
6 youthful offender or delinquent was a victim of human trafficking.

7 E. The consent of a victim to the activity prohibited by this
8 section shall not constitute a defense.

9 F. Lack of knowledge of the age of the victim shall not
10 constitute a defense to the activity prohibited by this section with
11 respect to human trafficking of a minor.

12 G. In an action in a court of this state, if a party offers
13 evidence of human trafficking, testimony of an expert witness
14 including, but not limited to, the effect of such human trafficking
15 on the beliefs, behavior, and perception of the person being
16 trafficked shall be admissible as evidence.

17 SECTION 2. AMENDATORY 74 O.S. 2021, Section 18p-1, as
18 amended by Section 2, Chapter 453, O.S.L. 2024 (74 O.S. Supp. 2025,
19 Section 18p-1), is amended to read as follows:

20 Section 18p-1. A. There is hereby created within the Office of
21 the Attorney General a Victims Services Unit.

22 B. The duty of the ~~Unit~~ unit is to provide services for persons
23 who require domestic violence, human trafficking, or sexual assault
24

1 services through a domestic violence, human trafficking, or sexual
2 assault program.

3 C. As used in this act, "domestic violence program", "human
4 trafficking program", or "sexual assault program" means an agency,
5 organization, facility, or person that offers, provides or engages
6 in the offering of any shelter, residential services or support
7 services to:

8 1. Victims or survivors of domestic abuse as defined in Section
9 60.1 of Title 22 of the Oklahoma Statutes, any dependent children of
10 such victim or survivor, and any other member of the family or
11 household of such victim or survivor;

12 2. Victims or survivors of sexual assault;

13 3. Persons who are homeless as a result of domestic abuse or
14 sexual assault or both domestic abuse and sexual assault; ~~and~~

15 4. Victims of stalking; and

16 5. Victims of human trafficking,

17 and which may provide other services including, but not limited to,
18 counseling, case management, referrals or other similar services to
19 victims or survivors of domestic abuse, sexual assault, human
20 trafficking, or stalking.

21 D. As used in this act, "batterers intervention program" or
22 "batterers treatment program" means an agency, organization,
23 facility, or person who offers, provides or engages in the offering
24

1 of counseling or intervention services to persons who commit
2 domestic abuse.

3 E. For any county in which there is more than one sexual
4 assault program, domestic violence program, human trafficking
5 program, or batterers intervention program and one or more of the
6 programs operates a shelter program, only the program or programs
7 operating a shelter program shall receive grants or funding from the
8 Victim Services Unit collected pursuant to subsection F of Section
9 153 of Title 28 of the Oklahoma Statutes and Section 2368.22 of
10 Title 68 of the Oklahoma Statutes.

11 SECTION 3. AMENDATORY 74 O.S. 2021, Section 18p-3, is
12 amended to read as follows:

13 Section 18p-3. A. The Attorney General is hereby authorized
14 and directed to enter into agreements and to contract for the
15 shelter and other services that are needed for victims of domestic
16 abuse, sexual assault, human trafficking, or batterers intervention
17 programs. Any domestic violence, sexual assault, human trafficking,
18 or batterers intervention program providing services pursuant to
19 certification by the Attorney General or a contract or subcontract
20 with the Attorney General and receiving funds from the Attorney
21 General or any contractor with the Attorney General shall be subject
22 to the provisions of the administrative rules of the Attorney
23 General.

1 B. 1. Except as otherwise provided by paragraph 3 of this
2 subsection, the case records, case files, case notes, client
3 records, or similar records of a domestic violence, human
4 trafficking, or sexual assault program certified by the Attorney
5 General or of any employee or trained volunteer of a program
6 regarding an individual who is residing or has resided in such
7 program or who has otherwise utilized or is utilizing the services
8 of any domestic violence or sexual assault program or counselor
9 shall be confidential and shall not be disclosed.

10 2. For purposes of this subsection, the term "client records"
11 shall include, but not be limited to, all communications, records,
12 and information regarding clients of domestic violence and sexual
13 assault programs.

14 3. The case records, case files, or case notes of programs
15 specified in paragraph 1 of this subsection shall be confidential
16 and shall not be disclosed except with the written consent of the
17 individual, or in the case of the individual's death or disability,
18 of the individual's personal representative or other person
19 authorized to sue on the individual's behalf or by court order for
20 good cause shown by the judge in camera.

21 C. The district court shall not order the disclosure of the
22 address of a domestic violence shelter, the location of any person
23 seeking or receiving services from a domestic violence or sexual
24

1 assault program, or any other information which is required to be
2 kept confidential pursuant to subsection B of this section.

3 D. The home address, personal telephone numbers and social
4 security number of board members, staff and volunteers of certified
5 domestic violence and sexual assault programs shall not be construed
6 to be open records pursuant to the Oklahoma Open Records Act.

7 SECTION 4. AMENDATORY 74 O.S. 2021, Section 18p-4, is
8 amended to read as follows:

9 Section 18p-4. A. As used in this section, "minor mother"
10 means an unemancipated female under ~~the age of~~ eighteen (18) years
11 of age who is pregnant or the biological parent of any child.

12 B. A domestic violence or human trafficking shelter facility
13 may provide shelter and care to a minor mother, who is the victim of
14 domestic abuse or human trafficking or is seeking relief from
15 domestic abuse for herself or on behalf of any of her children or
16 both herself and any of her children.

17 C. A domestic violence or human trafficking shelter facility
18 may provide shelter or care only during an emergency constituting an
19 immediate danger to the physical health or safety of the minor
20 mother or her child or both the minor mother and any of her
21 children. Such shelter or care shall not extend beyond thirty (30)
22 days unless the facility receives an order issued by the court to
23 continue such services or the parent or guardian of the minor mother
24 consents to such services.

1 D. The provisions of Section 856 of Title 21 of the Oklahoma
2 Statutes shall not apply to any domestic violence or human
3 trafficking shelter facility and any person operating such facility
4 who in good faith is providing shelter and care pursuant to the
5 provisions of this section to a minor mother and any of her children
6 who is a runaway from her parent or legal guardian.

7 E. The emergency custody hearing provided for in Section 1-4-
8 202 of Title 10A of the Oklahoma Statutes shall be provided for a
9 minor mother who is seeking relief from domestic abuse for herself
10 or on behalf of any of the her children.

11 SECTION 5. AMENDATORY 74 O.S. 2021, Section 18p-5, is
12 amended to read as follows:

13 Section 18p-5. The Office of the Attorney General shall be
14 responsible for the development, maintenance and operation of a
15 twenty-four-hour statewide telephone communication service for the
16 victims of rape, forcible sodomy, human trafficking, and domestic
17 violence. The purpose of the service is to provide information to
18 such victim regarding any immediate action which should be taken by
19 the victim, the social services available, and the legal rights and
20 remedies of the victim.

21 SECTION 6. AMENDATORY 74 O.S. 2021, Section 18p-6, is
22 amended to read as follows:

23 Section 18p-6. A. Effective July 1, 2005, all administrative
24 rules promulgated by the Department of Mental Health and Substance

1 Abuse Services relating to domestic violence and sexual assault
2 programs shall be transferred to and become a part of the
3 administrative rules of the Office of the Attorney General. The
4 Office of Administrative Rules in the Secretary of State's office
5 shall provide adequate notice in the Oklahoma Register of the
6 transfer of such rules, and shall place the transferred rules under
7 the Oklahoma Administrative Code section of the Attorney General.
8 Such rules shall continue in force and effect as rules of the Office
9 of the Attorney General from and after July 1, 2005, and any
10 amendment, repeal or addition to the transferred rules shall be
11 under the jurisdiction of the Attorney General.

12 B. The Attorney General shall adopt and promulgate rules and
13 standards for certification of batterers intervention, human
14 trafficking, and domestic violence programs and for private
15 facilities and organizations which offer domestic violence, human
16 trafficking, and sexual assault services in this state. These
17 facilities shall be known as "certified domestic violence shelters"
18 ~~or~~, "certified domestic violence programs" ~~or~~, "certified sexual
19 assault programs" ~~or~~, "certified treatment programs for batterers",
20 "certified human trafficking shelters", or "certified human
21 trafficking programs", as applicable.

22 C. Applications for certification as a certified domestic
23 violence shelter, domestic violence program, human trafficking
24 shelter, human trafficking program, sexual assault program or

1 treatment program for batterers, pursuant to the provisions of this
2 section, shall be made to the Office of the Attorney General on
3 prescribed forms. The Attorney General may certify the shelter or
4 program for a period of three (3) years subject to renewal as
5 provided in the rules promulgated by the Attorney General. Nothing
6 in this section shall preclude the Office of the Attorney General
7 from making inspection visits to a shelter or program to determine
8 contract or program compliance.

9 D. Licensed physicians, licensed psychologists, licensed social
10 workers, individual members of the clergy, licensed marital and
11 family therapists, licensed behavioral practitioners, and licensed
12 professional counselors shall be exempt from certification
13 requirements; provided, however, these exemptions shall only apply
14 to individual professional persons in private practice and not to
15 any domestic violence program or sexual assault program operated by
16 such person.

17 E. Facilities providing services for persons who commit
18 domestic abuse, victims or survivors of domestic abuse or sexual
19 assault, victims or survivors of human trafficking, and any
20 dependent children of such victims or survivors shall comply with
21 standards promulgated by the Attorney General; provided, that the
22 certification requirements and standards promulgated by the Attorney
23 General shall not apply to programs and services offered by the
24 State Department of Health, the Department of Mental Health and

1 Substance Abuse Services, the Department of Corrections, or the
2 Department of Human Services. The batterers intervention, domestic
3 violence, human trafficking, or sexual assault programs certified
4 pursuant to the provisions of this section shall cooperate with
5 inspection personnel of this state and shall promptly file all
6 reports required by the Attorney General. Failure to comply with
7 rules and standards of the Attorney General shall be grounds for
8 revocation of certification, after proper notice and hearing.

9 F. The Attorney General is hereby authorized to collect from
10 each applicant the sum of One Hundred Fifty Dollars (\$150.00) to
11 help defray the costs incurred in the certification process.

12 SECTION 7. AMENDATORY 74 O.S. 2021, Section 18p-7, is
13 amended to read as follows:

14 Section 18p-7. A. The Attorney General or any district
15 attorney, in such person's discretion, may bring an action for an
16 injunction against any batterers intervention, domestic violence
17 program, human trafficking program, or sexual assault program found
18 to be in violation of the provisions of this title or of any order
19 or determination of the Attorney General.

20 B. In any action for an injunction brought pursuant to this
21 section, any findings of the Attorney General or district attorney,
22 after hearing and due notice, shall be prima facie evidence of the
23 facts found therein.

SECTION 8. AMENDATORY 74 O.S. 2021, Section 18p-8, is amended to read as follows:

Section 18p-8. A. The Office of the Attorney General shall have the authority to collect information sufficient to meet its responsibilities related to oversight, management, evaluation, performance improvement and auditing of domestic violence, human trafficking, and sexual assault services and combating and preventing domestic violence and sexual assault in this state.

B. The individual forms, computer and electronic data, and other forms of information collected by and furnished to the Attorney General shall be confidential and shall not be public records as defined in the Oklahoma Open Records Act.

C. Except as otherwise provided by state and federal confidentiality laws, identifying information shall not be disclosed and shall not be used for any public purpose other than the creation and maintenance of anonymous datasets for statistical reporting and data analysis.

SECTION 9. This act shall become effective in accordance with the provisions of Section 58 of Article V of the Oklahoma Constitution.

COMMITTEE REPORT BY: COMMITTEE ON GOVERNMENT OVERSIGHT, dated 04/14/2026 - DO PASS